

25STCV08510 25STCV08510

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Case Number: 25STCV08510 Hearing Date: June 29, 2026 Dept: 408

Defendant General Motors, LLC's Motion for Compliance

pursuant to Code of Civil Procedure section 871.26 as to Plaintiff Sinecio

Mecinas is GRANTED. Sanctions are AWARDED in favor of Defendant and against

Plaintiff in the amount of \$1,500.00.

I.

BACKGROUND

On March 24, 2025, Plaintiff Sinecio

Mecinas ("Plaintiff") filed a complaint against Defendant General Motors, LLC

("Defendant") alleging causes of action for:

1.

Violation

of Subdivision (d) of Civil Code Section 1793.2;

2.

Violation

of Subdivision (b) of Civil Code Section 1793.2;

3.

Violation

of Subdivision (a)(3) of Civil Code Section 1793.2;

4.

Breach

of the Implied Warranty of Merchantability; and

5.

Fraudulent

Inducement – Concealment.

On September 5, 2025, Plaintiff
filed a First Amended Complaint (“FAC”).

On November 21, 2025, the court
overruled Defendant’s Demurrer to Plaintiff’s FAC.

On May 12, 2026, Defendant filed
this Motion for Compliance pursuant to Code of Civil Procedure section 871.26
and Request for Sanctions. As of June 24, 2026, no opposition or other
responsive pleading has been filed.

II.

LEGAL

STANDARD

To streamline the discovery process, the
legislature enacted Assembly Bill 1755 effective as of January 1, 2025,
which requires parties
to provide certain initial disclosure and
documents “without awaiting a discovery request”
and “[w]ithin 60 days after the filing of the answer or other
responsive pleading.” (Code Civ. Proc., § 871.26, subd. (b).)

Regarding initial depositions in civil actions seeking
restitution or replacement of a motor vehicle, Code of Civil Procedure section
871.26 provides, in relevant part, as follows:

“(c) Within 120 days after the filing of the answer or
other responsive pleading, all parties have the right to conduct initial
depositions, each not to exceed two hours, of the following
deponents:

(1) The plaintiff.

(2) The defendant, and if the defendant is not a natural
person, the person who is most qualified to testify on the defendant's behalf.

This deposition shall be limited to the topics listed in subdivision (i).”

(Code

Civ. Proc., § 871.26, subd. (c).)

If a party fails to comply with Section 871.26 and does not show good cause, a court shall impose sanctions in the amount of a “one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)” or “for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(1)-(2).)

III.

DISCUSSION

Defendant seeks to compel Plaintiffs to comply with Code of Civil Procedure section 871.26(c) to appear for initial depositions.

Under the current version of Section 871.26, effective January 1, 2025, a manufacturer must opt in to the procedures of the statute under Section 871.20 for Section 871.26 to apply. (Code Civ. Proc., §§ 871.20, 871.29.) From January 1, 2025, until April 2, 2025, a manufacturer was not required to opt in to the new lemon law protocols. Effective April 2, 2025, a manufacturer was required to opt in to the Section 871.26 procedures. (Ibid.) However, Section 871.26 remained unchanged. Section 871.26(1) states “[i]n addition to the requirements prescribed by subdivision (a), this section only applies to a civil action filed on or after January 1, 2025.” (Code Civ. Proc., § 871.26, subd. (1).) Thus, at the time Plaintiffs filed the instant action on March 24, 2025, and when Defendant opted into the statutory framework on April 23, 2025, the procedures outlined in Section 871.26 applied to this litigation. (Motion, at pp. 13-14.)

Pursuant to Section 871.26(c), Defendant had the statutory right to conduct Plaintiff’s initial deposition “within 120 days after the filing of the answer or other responsive pleading[.]” (Code Civ. Proc., §

871.26, subd. (c)(1).) Here, Defendant served its responsive pleading in the form of a demurrer to Plaintiff's complaint on August 18, 2025. (Motion, at p. 6; Lasater Decl., ¶ 3.) Accordingly, the 120-day time frame lapsed on December 16, 2025. As of the filing of this motion, on May 12, 2026, Plaintiff has objected to the initial deposition notice and failed to provide alternative dates of availability. (Lasater Decl., ¶¶ 5-8.) The foregoing is sufficient to establish that Plaintiff is in violation of Section 871.26(c). Plaintiff also failed to file an opposition. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

Defendant also requests sanctions against Plaintiff's counsel for failure to comply pursuant to Code of Civil Procedure section 871.26(j)(2). Absent good cause, sanctions are mandatory if a party fails to comply with Section 871.26. (Code Civ. Proc., § 871.26, subd. (j).)

The court finds that sanctions are warranted against Plaintiff's counsel in the amount of \$1,500.00 to be paid within 15 court days pursuant to Section 871.26(j)(2). There is no evidence that Plaintiff's counsel made an effort to provide availability or schedule the depositions before the 120-day deadline.

IV.

CONCLUSION

Defendant General Motors, LLC's Motion for Compliance pursuant to Code of Civil Procedure section 871.26 as to Plaintiff Sinecio Mecinas is GRANTED. Sanctions are AWARDED in favor of Defendant and against Plaintiff in the amount of \$1,500.00.